

**Tentative Rulings
August 24, 2026
Department 44
2:30 p.m.**

*****IMPORTANT – PLEASE READ*****

The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, remote appearances are strongly encouraged utilizing WebEx.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 between 2:20 and 2:30 p.m.

The access code is 2481 082 7484. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called;**
- 2. Please do not place the call on hold;**
- 3. Minimize all background noise during your call;**
- 4. Please identify yourself, each time, prior to speaking with the court;**
- 5. Disconnect when the court has completed your case or cases;**
- 6. The court prohibits the recording of these proceedings**

CONSERVATORSHIPS

CONSERVATORSHIP OF WAYNE DANYOU

CASE NUMBER: 26PC-0033235

This matter is on calendar for confirmation of filing the Final Inventory and Appraisal and Notice of Filing Inventory and Appraisal. The Court has read and considered the declaration filed on July 20, 2026, and accepted the Inventory and Appraisal filed on June 3, 2026, and Notice of Filing Inventory and Appraisal filed on June 4, 2026. The Court notes the future date of March 8,

2026, for Annual Review and Confirmation of Filing the First Account and Report of Conservator. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JEAN FAETH

CASE NUMBER: CVPG17-0029313

This matter is on calendar for hearing on an amended Fourth Account and Report of Conservator and Petition for Fees. The matter has been properly noticed with proof of service on file. No objections have been raised. The amended Petition sufficiently addresses the issues raised on June 29, 2026. The Petition is **GRANTED**. A proposed Order has been submitted and will be executed. The clerk is directed to return the lodged original statements to the submitting party. The next account will cover the period from October 16, 2025, through October 15, 2027, and is required to be filed no later than January 18, 2028. The hearing currently set for August 31, 2026, regarding the Fourth Account and Report is hereby **VACATED**. This matter is set for **Monday, January 31, 2028, at 2:30 p.m. in Department 44** for hearing on the Fifth Periodic Account and Report of Conservator.

This matter is also on calendar for hearing on a Petition for Authority to Sell Conservatee's Oil, Gas, Mineral, and Royalty Interests. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been lodged with the Court and will be executed. The Court confirms the future hearing date of October 19, 2026, for Biennial Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF LINDA HARTMAN

CASE NUMBER: 26PC-0033471

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person and Estate. The proof of service on the Notice of Hearing filed on July 7, 2026, omits the date of mailing. Therefore, the Court cannot determine if timely notice was provided to all individuals entitled to notice. The Citation has been filed with proper proof of service. Counsel has been appointed for the Conservatee. No objections have been raised. The Court has reviewed the Court Investigator's report, filed August 3, 2026, which recommends granting the Petition. The report states that the Conservatee will not attend the hearing. The Petition seeks authority to place the Conservatee in a secured facility; however, the Capacity Declaration does not state that a secured facility would be the least restrictive environment for the Conservatee. **An appearance is necessary on today's calendar to provide the Court with an amended proof of service with the date of mailing and to determine if there is any objection by the Public Defender's Office. If there is no objection and an amended proof of service is provided, the Court intends on granting the Petition, without the authority to place in a secured facility.**

CONSERVATORSHIP OF MILTON MILLER

CASE NUMBER: 26PC-0033446

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person and Estate. The Court dispenses with notice to the Conservatee's children and siblings Dorann and Darlene. There is no proof of service for the Conservatee's niece and power of attorney or remaining siblings. The Court notes the Petition fails to list the Conservatee's siblings under

item 11. Otherwise, the paperwork appears to be in order. The Court has reviewed the Court Investigator's report filed on July 27, 2026, which recommends granting the Petition. The report further indicates the Conservatee will attend the hearing. The matter is continued **to Monday, September 28, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the Petition, on the remaining siblings. Alternatively, if Petitioner cannot locate the siblings, the Court will require a declaration explaining all efforts of Petitioner to locate and serve them. Notice is preserved. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF MACE MILLSAP

CASE NUMBER: CVPG06-0025057

This matter is on calendar for further proceedings on an Ex Parte Request and Visitation Request by Debra Noble. An objection has been filed by the Conservator. The Court notes the related trust matter (case 27474) is also on calendar. **An appearance is necessary on today's calendar.**

CONSERVATORSHIP OF STEVEN REED

CASE NUMBER: CVPG07-0025571

This matter is on calendar for status of bond and confirmation of counsel. At the last hearing, Janette Yount was removed as the Conservator for failure to file a status of bond in the amount of \$26,000.00. As a result, the Attorney Izzi was appointed as counsel for the Conservatee. **An appearance is necessary on today's calendar.**

CONSERVATORSHIP OF VICKY SERPA

CASE NUMBER: 26PC-0033394

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. The Court notes letters did not issue in this matter until June 24, 2026. The matter is continued to **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. **No appearance is necessary on today's calendar.**

ESTATES

ESTATE OF JERRY ALLEN

CASE NUMBER: 26PB-0033435

This matter is on calendar for further proceedings on the Petition for Letters of Administration. The Court previously found the matter properly noticed. Proof of proper publication has been filed. No objections have been raised. The Petition was granted and letters issued on August 13, 2026. The matter is set for **Monday, December 14, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 16, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF EDNA ASHER

CASE NUMBER: 25PB-0032809

This matter is on calendar for confirmation of filing a Petition for Final Discharge. A Petition for Final Discharge has not been submitted. No Status Report has been filed as ordered on August 10, 2026. The matter is continued to **Monday, September 14, 2026, at 2:30 p.m. in Department 44** for confirmation of filing a Petition for Final Discharge. If the Petition cannot be filed prior to the next hearing date, the Personal Representative is again **ORDERED** to file a Status Report at least five days before the hearing advising what must be accomplished before the Petition can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF SARAH BLUDWORTH

CASE NUMBER: 26PB-0033387

This matter is on calendar for further proceedings on a Petition to Determine Succession to Primary Residence. No further documents have been filed to address the issues raised on July 20, 2026. An amended Petition and Notice of Hearing have not been filed and served for today's date. Considering Petitioner's failure to file and serve the documents necessary to move forward, the Petition is **DENIED** without prejudice. The clerk is directed to vacate any future hearing dates and close the file. **No appearance is necessary on today's calendar.**

ESTATE OF LUIS DELGADO

CASE NUMBER: 23PB-0032172

This matter is on calendar for confirmation of filing a proposed order for final distribution and a Petition for Final Discharge. No order for final distribution has been filed. A Petition for Final Discharge has not been submitted. No Status Report has been filed. The matter is continued to **Monday, September 14, 2026, at 2:30 p.m. in Department 44** to confirm filing of a proposed order for final distribution and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF BRUCE DUNN

CASE NUMBER: 26PB-0033229

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on April 28, 2026, is accepted by the Court, despite that the Inventory and Appraisal fails to identify whether the assets were community or separate property, in compliance with Probate Code Section 8850(c). The Petition indicates the decedent was not married, therefore the defect may be overlooked. The Court notes the future date of April 19, 2027, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF JEFFERY ENGELL

CASE NUMBER: 26PB-0033311

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. A Status Report has been filed indicating additional time is needed before the Inventory and Appraisal can be filed. This matter is continued to **Monday, December 14, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of April 19, 2027, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF FRANK FIGUEROA

CASE NUMBER: 26PB-0033299

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. The Personal Representative has filed a Status Report which indicates that additional time is needed before the Final Inventory and Appraisal can be filed. This matter is continued to **Monday, October 26, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of April 19, 2027, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF STANLEY FREEMAN

CASE NUMBER: 26PB-0033244

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on May 20, 2026, is accepted by the Court. The Court notes the future date of April 19, 2027, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF NORMAN HUGGINS

CASE NUMBER: 25PB-0033031

This matter is on calendar for confirmation of filing the Inventory and Appraisal and for hearing on an Order to Show Cause Re: Monetary Sanctions issued to the Personal Representative for failure to file the Inventory and Appraisal and failure to file a Status Report as ordered on March 2, 2026, and April 20, 2026. A declaration has been filed which sufficiently explains the Personal Representative's failure to file the Inventory and Appraisal. The Court **VACATES** the Order to Show Cause and will not impose sanctions.

The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of November 2, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF LARRE JENSEN

CASE NUMBER: CVPB21-0031175

This matter is on calendar for further proceedings on the Petition for Order Directing Return of Possession of Real and Personal Property. The matter was previously continued to allow Ms. Jensen additional time to move out of the home. No further documents have been filed to provide the Court with status of the move. **An appearance is necessary on today's calendar.**

ESTATE OF CAROLYN JERASHEN

CASE NUMBER: 26PB-0033495

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, January 4, 2027, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 23, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF ROCKY JOHNSON

CASE NUMBER: 23PB-0032068

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on March 23, 2026. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of

an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the September 28, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF ROBERT KREBS

CASE NUMBER: 25PB-0032876

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A Status Report has been filed and noticed for September 21, 2026. That date is confirmed. **No appearance is necessary on today's calendar.**

ESTATE OF EUNICE MCCARTHY

CASE NUMBER: CVPB19-0030038

This matter is on calendar for Status of Administration. A Petition for Final Distribution has not been filed. No Status Report has been filed as ordered on May 26, 2026. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the September 28, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF SLOANE MCMAHON

CASE NUMBER: 25PB-0032813

This matter is on calendar for confirmation of filing the Inventory and Appraisal and Status of Administration. A Final Inventory and Appraisal has not been filed. No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed stating that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, November 23, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Final Inventory and Appraisal, failure to timely close the estate administration, and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the November 23, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF JOSEPH MICHIELS

CASE NUMBER: 25PB-0032988

This matter is on calendar for confirmation of filing the Inventory and Appraisal and Status of Administration. A Final Inventory and Appraisal has not been filed. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on June 22, 2026. This

matter is continued to **Monday, October 5, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court again **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of October 5, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF SUSAN PALMER

CASE NUMBER: 24PB-0032564

This matter is on calendar for Status of Administration. The First and Final Account and Report of Administrator and Petition for Final Distribution has been filed and is set for hearing on September 14, 2026. That date is confirmed. **No appearance is necessary on today's calendar.**

ESTATE OF PAUL PASCUAL SR.

CASE NUMBER: 26PB-0033479

This matter is on calendar for hearing on a Petition for Letters of Administration. The Petition contains the following defects:

1. Item 2e states that no bond is required for the reasons stated in item 3e. Item 3e is incomplete. The Court notes a waiver of bond was filed by Paul Pascual Jr. A waiver of bond has not been filed for the remaining beneficiaries.
2. Item 5(a) 3 or 4 must be completed.
3. Item 5(a) 7 or 8 must be completed.
4. The Notice of Petition to Administer Estate is incomplete as to item 10.
5. Proof of publication has been filed, however it is insufficient. "Notice shall be published in a newspaper of general circulation in the city where the decedent resided at the time of death." Probate Code Section 8121(b). The Petition states the decedent was a resident of Cottonwood, California. The Intermountain News is not a newspaper of general circulation in Cottonwood.

Due to the above defects, the Court is unable to determine if proper notice has been provided. The Court notes there is no proof of service for Paul Pascual Jr., and the proof of service for Wendy Pascual filed on August 14, 2026, indicates that notice was untimely. The matter is continued to **Monday, October 5, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. Petitioner is required to file an amended Petition to address the issues raised above. Petitioner is also required to file and serve a new Notice of Petition to Administer Estate for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. Proof of proper publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF STEVEN PROVENCHER

CASE NUMBER: 25PB-0032989

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on August 17, 2026, is accepted by the Court.

This matter is also on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. This matter is continued to **Monday, October 5, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the October 5, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF MILDRED TRELOAR

CASE NUMBER: 25PB-0032986

This matter is on calendar to confirm the filing of Receipts and a Petition for Final Discharge. The Court notes no proposed order for final distribution has been submitted. A proposed Petition for Final Discharge has been submitted with a receipt attached, however it cannot be executed until an order for final distribution has been filed. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** to confirm filing of a proposed order for final distribution, Receipts, and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: BEEMAN FAMILY 1995 REVOCABLE LIVING TRUST

CASE NUMBER: 26PB-0033436

This matter is on calendar for hearing on a Verified Petition for Order Confirming the Assets of the Trust. A new Notice of Hearing has been filed and served for today's date using form DE-120. This is a Petition to confirm trust property under Probate Code Section 850, thus mandatory form DE-115 is required to be used. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition to Confirm Trust Property. Petitioner is required to file and serve a new Notice of Hearing on Petition to Determine Claim to Property for the continued hearing date, along with a copy of the Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: KADENCE RENEE PODLAS TRUST

CASE NUMBER: CVPB20-0030697

This matter is on calendar for hearing on a Petition for Instructions, for Payment of Attorney's Fees, and Request for Periodic Payments to Trustee and Attorney for Services Provided. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**, with a \$400.00 reduction in attorney's fees, for a total of \$2,400.00, because an appearance on today's calendar will not be required. A proposed Order has been lodged and will be modified to reflect the Court's ruling. **No appearance is necessary on today's calendar.**

IN RE: THE MACE MILLSAP TRUST

CASE NUMBER: CVPB13-0027474

This matter is on calendar for further proceedings on a Petition for Approval of Seventh Account and Report, status of Petition for Removal of Trustee, status of inspections, and setting of a contested hearing with a Motion to Modify June 5, 2017, Order of the Honorable Monique McKee in this case trailing. The Court notes the related conservatorship matter (case 25057) is also on calendar. **An appearance is necessary on today's calendar.**